

25STCV26855 25STCV26855

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C07%2F07%2F2026

Source SHA-256: 0dece9820c68ee9ddb5b5fd0c6a56b0cd63252c8056540c89418bd28f349198c

Case Number: 25STCV26855 Hearing Date: July 7, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 10:37 AM on July 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 6, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges while she was placed on an involuntary leave of absence and then terminated after she suffered injuries on the job for which she requested accommodation.

Defendants Marriott Hotel Services, LLC (erroneously

sued as Marriott Hotel Services, LLC dba JW Marriott Los Angeles L.A. Live) and Nancy Rodriguez demur to the First Amended Complaint and move to strike portions thereof.

TENTATIVE RULING

Defendants Marriott Hotel Services, LLC (erroneously sued as Marriott Hotel Services, LLC dba JW Marriott Los Angeles L.A. Live) and Nancy Rodriguez's demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the sixth cause of action and OVERRULED as to the seventh cause of action.

Defendants' motion to strike is DENIED as to punitive allegations at ¶¶ 35, 45, 49, 56, 62, 74, 79 and ¶ 7 of the Prayer, and is MOOT as to ¶ 71. The motion to strike is GRANTED without leave to amend as to ¶¶ 2, 3, 4, 5 as to Labor Code and Bus. & Prof. Code § 17200 remedies.

Defendants are to answer the remaining allegations of the First Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and
Confer

The Declaration of Alexander Harwin reflects that Defendants' counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

Plaintiff

filed oppositions to the demurrer and motion to strike on June 30, 2026, four court days before the hearing, which is less than the nine court days before the hearing as required by Code of Civil Procedure section 1005(b).

Defendants Marriott Hotel Services, LLC (erroneously sued as Marriott Hotel Services, LLC dba JW Marriott Los Angeles L.A. Live) and

Nancy Rodriguez demur to the First Amended Complaint as follows:

1. Sixth Cause of Action (Harassment and Hostile Work Environment).

Defendants argue that personnel management actions do not constitute harassment as a matter of law.

Here, Plaintiff alleges the following in support of the sixth cause of action for harassment and hostile work environment:

65. Defendants, through their supervisors and managers, subjected Plaintiff to harassment based on her physical disability and age. On November 26, 2024, Defendants conducted an Interactive Process meeting attended by Nancy Rodriguez (Director of HR Operations), Carolina Merten (HR Manager Workers Compensation & Safety), and Alondra Lopez (Housekeeping Manager), which was a sham proceeding with a predetermined outcome. This conduct included informing Plaintiff at the meeting's conclusion that the department was "unable to accommodate" her permanent restrictions without any genuine exploration of job modifications, alternative positions, or reasonable accommodations that would utilize her fourteen years of experience and institutional knowledge.

66. Within twenty-four hours of this meeting, on November 27, 2024, Defendants placed Plaintiff on involuntary leave of absence, isolating her from the workplace and her colleagues of fourteen years. Defendants imposed an unrealistic deadline of December 27, 2024—only thirty days—for Plaintiff to independently find a suitable position within the company, directing her to search www.marriott.com/careers without providing any meaningful assistance, discussion of specific vacant positions, or guidance in identifying roles that matched her qualifications and restrictions.

67. Defendants' harassment continued through their pattern of contact near the termination deadline, reaching out to Plaintiff on December 27, 30, and 31, 2024, and January 2, 2025, ostensibly to check on her job search, while knowing they had provided no assistance and had already predetermined her termination. The termination letter itself was dated January 2, 2025, four days before the effective termination date of January 6, 2025, demonstrating that Defendants had already decided to terminate Plaintiff regardless of any efforts she made.

(1AC, ¶ 65

[bold emphasis added].)

The foregoing allegations are insufficient to state a cause of action for harassment based on disability and/or age. Rather, these allegations state that the process of placing Plaintiff on involuntary leave had a predetermined outcome that she would be terminated. This is the exercise of official actions which, even if done maliciously, by itself does not constitute harassment. Plaintiff does not allege any physical, verbal or visual harassment[1] on the basis of her disability or age in the social environment.

In addition, disability harassment is distinguishable from discrimination. (Serri, *supra*, 226 Cal.App.4th at p. 869.) “[D]iscrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (Ibid., italics added.) “[H]arassment focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (Roby, *supra*, 47 Cal.4th at p. 706.) Put differently, “[h]arassment claims are based on a type of conduct that is avoidable and unnecessary to job performance. No supervisory employee needs to use slurs or derogatory drawings, to [*737] physically interfere with freedom of movement, to engage in unwanted sexual advances, etc., in order to carry out the legitimate objectives of personnel management. Every supervisory employee can insulate himself or herself from claims of harassment by refraining from such conduct. An individual supervisory employee cannot, however, refrain from engaging in the type of conduct which could later give rise to a discrimination claim. Making personnel decisions is an inherent and unavoidable part of the supervisory function.” (Reno v. Baird (1998) 18 Cal.4th 640, 646 [76 Cal. Rptr. 2d 499, 957 P.2d 1333], italics added.) “When the harasser is a supervisor, the employer is strictly liable for the supervisor’s actions.” (Roby, at p. 707.)

...

Secondly, even if the incidents Doe cites did qualify as objectively severe and abusive, they still would not constitute harassment because each one involved a personnel decision by Dr. Castro within the scope of his duties as Doe’s supervisor. Assigning and reviewing work, approving time off requests, and enforcing workplace rules all fall within the duties of a manager.

In other words, the behavior Doe identifies is not harassment because it was not avoidable conduct superfluous to Dr. Castro's job description. That Doe felt his supervisor performed his duties in a negative or malicious way does not transform his conduct into disability harassment.

Doe's attempt to liken his negative experiences with Dr. Castro to the supervisor's treatment of the employee in *Roby* is unavailing. In that case, *Roby*'s supervisor made demeaning comments about her body odor and arm sores, refused to respond to her greetings, and frequently made demeaning facial expressions and gestures toward her. The court concluded this conduct constituted harassment because none of it could "fairly be characterized as an official employment action ... , [r]ather, these were events that were unrelated to [the supervisor's] managerial role, engaged in for her own purposes." (*Roby*, supra, 47 Cal.4th at p. 709.) Here, in contrast, each of Dr. Castro's challenged acts fell within his job duties and—unlike *Roby*'s supervisor's behavior, which centered on *Roby*'s physical appearance—there is no evidence of a nexus between Dr. Castro's conduct and Doe's asthma or dyslexia.

For the reasons just discussed, we also reject Doe's argument that CDCR's denial of his accommodation requests created a triable issue of harassment. The processing of such requests is an official action and CDCR had an objectively nonhostile, nonabusive reason for denying Doe's requests—lack of medical substantiation.

(*Doe v. Dep't of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 736-38 [bold emphasis added].)

As such, the sixth cause of action is SUSTAINED without leave to amend, unless Plaintiff can demonstrate a reasonable possibility of successful amendment.

2. Seventh Cause of Action (Failure to Prevent Discrimination, Harassment, and Retaliation).

Defendants argue that this cause of action fails because Plaintiff cannot maintain her harassment claim.

However, a demurrer does not lie to a portion of a cause of action. Defendants do not demonstrate why failure to prevent

discrimination and retaliation are not actionable.

The demurrer to the seventh cause of action is OVERRULED.

Motion To Strike

Meet and Confer

The Declaration of Alexander Harwin reflects that Defendants' counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 435.5.

Discussion

Defendants Marriott Hotel Services, LLC (erroneously sued as Marriott Hotel Services, LLC dba JW Marriott Los Angeles L.A. Live) and Nancy Rodriguez move to strike the following portions of the First Amended Complaint:

· Paragraph 35 of the FAC which states:

"Defendants' actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff's rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294." (FAC, p. 6:9-10.)

DENIED.

Reading the 1AC as a whole, there are sufficient facts pled to constitute malice as that term is defined in Civil Code § 3294(c) to include "conduct which is intended by the defendant to cause injury to the plaintiff." Here, the 1AC alleges that after Plaintiff was injured and sought workers' compensation benefits, Defendant failed to accommodate her disability and engaged in a retaliatory termination:

13. Plaintiff consistently met or surpassed Defendants' performance expectations, completed all assigned duties, and, as reflected in her performance evaluations, received positive feedback with no record of formal discipline.

14. On November 16, 2023, while performing

her assigned duties, Plaintiff sustained a significant, work-related injury to her left ankle and foot. Plaintiff promptly reported the injury to Defendants and initiated a workers' compensation claim to seek medical treatment, exercising a protected right under the Labor Code.

15. On November 17, 2024, Plaintiff suffered a second distinct workplace injury, this time to her bilateral knees, which further contributed to her physical limitations and necessitated additional medical care under the workers' compensation system.

16. As a result of her disability and the permanent restrictions, Plaintiff required accommodations to continue her employment.

17. On or around November 26, 2024, Defendants, through Human Resources Director Nancy Rodriguez and other managers, held a meeting with Plaintiff. At the conclusion of the November 26, 2024, meeting, Defendants stated they were unable to accommodate Plaintiff's restrictions permanently, failing to genuinely consider job modifications or reassignment.

18. The day after this meeting, on or around November 27, 2024, Defendants took adverse action against Plaintiff by placing her on an involuntary leave of absence.

19. Defendants terminated her employment effective January 6, 2025.

20. At the time of her termination, Plaintiff was 55 years old, placing her within the protected age class under Government Code section 12940(a).

...

41. Defendants terminated Plaintiff's employment and failed to reassign her to an alternative position, instead retaining younger employees in roles Plaintiff was qualified to perform.

42. Plaintiff retained the ability

to perform constant reaching, bending, and squatting, with limitations only on lifting capacity (10 pounds occasionally) and walking frequency. These restrictions could have been reasonably accommodated for a long-tenured, experienced employee, yet Defendants immediately determined accommodation was impossible without meaningful analysis.

43. Plaintiff's age was a substantial motivating factor in Defendants' decision to terminate her employment rather than find a way to retain a long-term, experienced employee. Rather than valuing Plaintiff's fourteen years of loyalty and expertise, Defendants summarily concluded she could not be accommodated and directed her to search for open positions herself without assistance.

· · ·

54. Defendants failed to engage in a good-faith interactive process. The meeting held on November 26, 2024, was a sham conducted with a predetermined outcome. Directing Plaintiff to a public careers website without meaningful assistance or discussion of specific vacant positions was not a good faith effort to find an accommodation.

(1AC, ¶¶ 13

– 20, 41 – 43, 54 [bold emphasis added].

· Paragraph

45 of the FAC which states: "Defendants' actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff's rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294." (FAC, p. 7:19-20.)

DENIED. See above.

· Paragraph 49 of the FAC which states:

"Defendants' actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff's rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294." (FAC, p. 8:14-15.)

DENIED. See above.

· Paragraph 56 of the FAC which states:

"Defendants' actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff's rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294." (FAC, p. 9:8-9.)

DENIED. See above.

· Paragraph 62 of the FAC which states:

“Defendants’ actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff’s rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294.” (FAC, p. 10:3-4.)

DENIED. See above.

· Paragraph 71 of the FAC which states:

“Defendants’ actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff’s rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294.” (FAC, p. 11:20-21.)

MOOT by virtue of the ruling on the demurrer to the sixth cause of action.

· Paragraph 74 of the FAC which states:

“Defendant MARRIOTT HOTEL SERVICES, LLC’s actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff’s rights, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294.” (FAC, p. 12:16-18.)

DENIED. See above.

· Paragraph 79 of the FAC which states:

“Defendants’ actions were willful, malicious, and oppressive, and in conscious disregard of Plaintiff’s rights and of public policy, thereby entitling Plaintiff to punitive damages pursuant to Civil Code section 3294.” (FAC, p. 13:8-10.)

DENIED. See above.

· Paragraph 2 of the Prayer for Relief

in the FAC which states: “For meal-period premium wages pursuant to Labor Code section 226.7;” (FAC, p. 13:15)

GRANTED without leave to amend.

Plaintiff does not plead a cause of action for any Labor Code violations.

· Paragraph 3 of the Prayer for Relief

in the FAC which states: "For statutory penalties pursuant to Labor Code sections 203, 226, 226.3, 226.7, 1198.5, and any others that may be applicable;" (FAC, p. 13:16-17)

GRANTED without leave to amend.

Plaintiff does not plead a cause
of action for any Labor Code violations.

· Paragraph 4 of the Prayer for Relief

in the FAC, which states: "For restitution of all benefits Defendants acquired through unfair business practices pursuant to Business and Professions Code section 17203;" (FAC, p. 13:18-19)

GRANTED without leave to amend.

Plaintiff does not plead a cause
of action for violation of Business and Professions Code § 17203.

· A portion of Paragraph 5 of the Prayer

for Relief in the FAC, which states: "...and Labor Code section 218.5 and 226;" (FAC, p. 13:20-21)

GRANTED without leave to amend.

Plaintiff does not plead a cause
of action for any Labor Code violations.

· Paragraph 7 of the Prayer for Relief

in the FAC which states: "For punitive damages pursuant to Civil Code section 3294." (FAC, p. 13:24.)

DENIED. See
above.

Defendants

are to answer the remaining allegations of the First Amended Complaint within 10 days.

[1]

(2) Harassment

includes but is not limited to:

(A) Verbal

harassment, e.g., epithets, derogatory comments or slurs on a basis enumerated in the Act;

(B) Physical

harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act;

(C) Visual

forms of harassment, e.g., derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or

(D) Sexual

favors, e.g., unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. [See also section 11034(f)(1).]

(E) In

applying this subsection, the rights of free speech and association shall be accommodated consistently with the intent of this subsection.

(2 CCR 11019.)